

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

CHRISTOPHER MARSH,

Petitioner

VS.

VESNA MARSH,

Respondent

) Case Number: FDI-15-783933

) Hearing Date: May 26, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER: ENFORCE JUDGMENT RE AVIVA UK PENSION(S)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

1) Petitioner Christopher Marsh (Husband) and Respondent Vesna Marsh (Wife) entered into a Stipulated Judgment which was filed on 11/24/2021. Both parties are currently self-represented.

2) Paragraph 3(G) of the Stipulated Judgment filed on 11/24/2021 provides in relevant part:

a. "Vesna is awarded the following retirement accounts and all funds held therein: Aviva/Tk Account xxx-8658, and...Aviva/Tk Account xxx-1899. The accounts are currently in Chris' name. The parties will meet and confer and work together in preparing the necessary documents for the accounts to be transferred to Vesna's name. The cost of preparation of any documents necessary to effectuate the transfer shall be split 50/50 between the parties."

3) No substantive pleadings were filed in this matter since entry of Judgment until Wife filed the instant Request for Order on 3/13/2026. Wife states that Aviva, which is a United Kingdom pension entity, has informed Wife that it requires an England and Wales pension sharing order before it can transfer the Aviva accounts into Wife's name. Wife states that at the time of

1 settlement, she agreed to accept Husband's Aviva UK pension interests because she "understood
2 their value to be roughly equivalent to a premarital gift from my parents that was at issue in the
3 settlement discussions" but she "did not then understand the later implementation problems
4 associated with transferring those pension interests under United Kingdom rules." Wife states she
5 has attempted to work with Husband regarding these issues but he has not been cooperative and
6 he has failed to sign a Letter of Authority to authorize her to obtain plan-specific information
7 from Aviva directly. Wife asks the Court to:

- 8 a. Order Husband to cooperate in providing information and authorizations necessary for
9 valuation, including ordering Husband to sign any reasonable authorization or other
10 document necessary to obtain information from Aviva or to carry out any other order the
11 Court makes regarding valuation and enforcement;
 - 12 b. Award Wife an equalizing offset from other property or assets if direct transfer of the
13 Aviva pension interests cannot be completed; and
 - 14 c. Reserve jurisdiction to make any additional orders necessary to effectuate the Judgment
15 and achieve an equal division of the community property awarded by the Judgment.
- 16 4) Per the Proof of Service filed 4/24/2026, Wife's Request for Order, blank Responsive
17 Declaration, and the Tentative Ruling Instructions were personally served on Husband on
18 4/3/2026.
- 19 5) Husband did not file a Responsive Declaration.

20 **B. Findings and Order**

- 21 1) Wife shall draft a Letter of Authority which authorizes Wife to obtain information regarding
22 Aviva/Tk Account xxx-8658 and Aviva/Tk Account xxx-1899 directly from Aviva. The Letter of
23 Authority shall contain the information outlined by the Aviva Customer Services Representative
24 in Wife's Exhibit E.
- 25 2) Within 48 hours of being presented with the Letter of Authority drafted by Wife, Husband shall
26 sign and date the letter and return the letter to Wife.
- 27 3) Husband shall forthwith investigate what he can do to have Aviva/Tk Account xxx-8658 and
28 Aviva/Tk Account xxx-1899 transferred into Wife's name and take any steps necessary to
29 effectuate those transfers.

- 1 4) A review hearing is set for **Tuesday, 8/4/2026 at 9:00 AM in Dept. 404** for the Court to review
2 Husband's compliance with the orders set forth above and for the Court to consider Wife's
3 request to award Wife an equalizing offset from Husband's other property or assets if direct
4 transfer of the Aviva pension interests cannot be completed.
- 5 5) At least 30 calendar days prior to the next hearing date, Husband shall file and serve a declaration
6 which explains: (a) what efforts he has taken to date to have Aviva/Tk Account xxx-8658 and
7 Aviva/Tk Account xxx-1899 transferred into Wife's name; (b) what is the current value of
8 Aviva/Tk Account xxx-8658 and Aviva/Tk Account xxx-1899 (Husband shall also attach
9 documentary evidence supporting these values); and (c) what other assets he has that are
10 equivalent in value to Aviva/Tk Account xxx-8658 and Aviva/Tk Account xxx-1899 that can be
11 transferred to Wife in lieu of the Aviva accounts.
- 12 6) At least 10 calendar days prior to the next hearing date, Wife shall file and serve a declaration
13 providing any material updates related to her 3/13/2026 Request for Order.
- 14 7) The Court will prepare the Findings and Order After Hearing.
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